

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DEVON BASHER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ROBERT
RIVERA (Shield No. 1434) and "JOHN DOE" #1,
being fictitious and an unknown police
officer of the New York Police Department,

Defendants.
-----X

Index No.:

Filed:

SUMMONS

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York and in case of your failure to appear or answer, judgment will be taken by default for the relief demanded in the complaint.

Plaintiff designates New York County as the place of trial. The basis of venue is Defendant's residence.

Defendant's address(es):

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. ROBERT RIVERA (Shield No. 1434)
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

JOHN DOE #1
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

JONATHAN C. REITER LAW FIRM, PLLC

By:

A handwritten signature in dark ink, appearing to read "Jonathan C. Reiter", written over a horizontal line.

JONATHAN C. REITER

Attorneys for Plaintiff

350 Fifth Avenue, Suite 6400

New York, New York 10118

(212) 736-0979

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DEVON BASHER,

Plaintiff,

- against -

Index No.:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, P.O. ROBERT
RIVERA (Shield No. 1434) and "JOHN DOE" #1,
being fictitious and an unknown police
officer of the New York Police Department,

Defendants.
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Plaintiff, DEVON BASHER by his attorneys, JONATHAN C. REITER LAW FIRM,
PLLC, complaining of the defendants, allege, upon information and belief, as follows:

1. At all times herein mentioned, defendant THE CITY OF NEW YORK was a
municipal corporation duly organized and existing under and by virtue of the laws of the State of
New York.

2. At all times herein mentioned, defendant THE CITY OF NEW YORK was
responsible for the practices, policies and customs of the New York City Police Department.

3. At all times herein mentioned, defendant THE CITY OF NEW YORK was
responsible for the hiring, screening, training, supervising, controlling and disciplining of those
persons employed by the New York City Police Department.

4. At all times herein mentioned, the New York City Police Department was an
agency of defendant THE CITY OF NEW YORK.

5. Defendants P.O. ROBERT RIVERA (Shield No. 1434) and POLICE OFFICER
JOHN DOE #1, are being sued herein both in their individual and official capacities, are and

were at all times hereinafter mentioned, and particularly on or about December 28, 2013, employed by the defendant THE CITY OF NEW YORK.

6. Defendants were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or the City of New York and defendants were also acting within the scope of and in furtherance of their employment.

7. Prior to commencement of this action and within 90 days of occurrence herein, on December 28, 2013, plaintiff DEVON BASHER served a Notice of Claim in writing, upon the defendant THE CITY OF NEW YORK, in accordance with Section 50-e of the General Municipal Law.

8. That on August 1, 2014, plaintiff, DEVON BASHER appeared for an examination under oath pursuant to Section 50-h of the General Municipal Law 50-h.

9. This action was commenced within one year and ninety days after the happening of the events upon which the claims herein are based.

10. That plaintiff has complied with all of the prerequisites for bringing this action.

11. That on or about December 28, 2013, at approximately 7:00 pm, on the sidewalk in front 2 Pennsylvania Plaza, Police Officer Robert Rivera (Shield No. 1434) and Police Officer John Doe 1 (whose name is fictitious), individually and while in the course and scope of their employment with the New York City Police Department, and acting under authority of the City of New York, assaulted, forcibly attacked the Plaintiff and pushed him face first to the ground, without probable cause, willfully, wantonly, maliciously, and intentionally committed assault and battery upon plaintiff.

12. Plaintiff's arms were forced behind his back, he was pushed to his knees and face was pushed to the ground causing plaintiff to sustain injuries to his knees, back, neck, shoulders, wrists and other bodily injuries.

13. Defendants placed plaintiff in handcuffs without reason or cause.

14. Defendants committed an unjustified arrest of plaintiff.

15. That the City of New York, and its agents refused and/or failed to provide plaintiff with prompt medical attention for the injuries its police officers inflicted upon plaintiff. That Plaintiff made repeated requests for medical attention before he was finally taken to Bellevue Hospital by police officers.

AS AND FOR A FIRST CAUSE OF ACTION FOR BATTERY

16. Plaintiffs repeat and reiterate all of the above allegations as if fully set forth herein at length.

17. That defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 intentionally caused an offensive bodily contact with plaintiff, DEVON BASHER.

18. That plaintiff, DEVON BASHER, did not consent to the aforesaid offensive bodily contact.

19. That defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 engaged in the use of excessive force during the occurrences complained of herein.

20. That the force used by defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 during the occurrences complained of herein was beyond the

amount of force that the aforesaid defendants reasonably believed to be necessary to effect plaintiff's arrest.

21. That defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 used excessive force to effectuate an arrest that was without probable cause or a warrant, and which was unlawful.

22. That the force used by defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 during the occurrences complained of herein was not justified or otherwise privileged.

23. That defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 did commit a battery upon plaintiff DEVON BASHER.

24. That defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 were acting within in the course of their employment with the defendant THE CITY OF NEW YORK at the time of the aforementioned occurrences complained of herein.

25. That the defendant, THE CITY OF NEW YORK, is liable to the plaintiff, DEVON BASHER, under the doctrine of *respondeat superior* for the acts and omissions of defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 and others in the New York City Police Department.

26. That by reason of the foregoing, plaintiff DEVON BASHER was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

27. That by reason of the foregoing, the plaintiff, DEVON BASHER, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST AND IMPRISONMENT**

28. Plaintiffs repeat and reiterate all of the above allegations as if fully set forth herein at length.

29. That defendants Police Office Robert Rivera (Shield No. 1434) and Police Officer JOHN DOE #1 and defendant THE CITY OF NEW YORK's agents, servants and/or employees, wrongfully and unlawfully detained, confined, arrested, imprisoned and deprived plaintiff DEVON BASHER of his liberties against his will and without his consent.

30. That defendants intended to detain, confine, arrest and imprison plaintiff DEVON BASHER.

31. That plaintiff DEVON BASHER was aware of the aforesaid detention, confinement, arrest and imprisonment.

32. That plaintiff DEVON BASHER did not consent to the aforesaid detention, confinement, arrest and imprisonment.

33. That the aforesaid detention, confinement, arrest and imprisonment was not justified or privileged.

34. That the aforesaid detention, arrest and imprisonment was unlawful, and not based upon a warrant, reasonable or probable cause and/or any other justification.

35. That defendants falsely arrested and imprisoned plaintiff DEVON BASHER.

36. That, at the time of the unlawful detention, confinement, arrest and imprisonment, the defendant police officers departed from accepted standards of police procedure and investigation techniques.

37. That, at the time of the unlawful detention, arrest and imprisonment, the defendant police officers acted without probable or reasonable cause.

38. That by reason of the foregoing, plaintiff DEVON BASHER was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

39. That by reason of the foregoing, the plaintiff, DEVON BASHER, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
VIOLATION OF CIVIL RIGHTS**

40. Plaintiffs repeat and reiterate all of the above allegations as if fully set forth herein at length.

41. That the actions of the defendants resulting from the unlawful arrest, detention, imprisonment, assault, use of excessive force, and the prosecution of the plaintiff DEVON BASHER deprived him of rights, privileges, and immunities as granted under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1983 and 1988, as the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, the policies and customs concerning the hiring, training, supervision, retention and discipline of defendants' agents,

servants and/or employees, and those involving the arrest, detention and prosecution of individuals.

42. That the defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use of excessive force and acts of misconduct against civilians, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and adequately discipline their agents, employees and offices.

43. That the defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of improper procedures and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and officers.

44. That the defendants have deprived plaintiff, DEVON BASHER, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S. C. § 1983, and the Constitution of the State of New York.

45. That the defendants' actions were undertaken under color of law and would not have existed but for said defendants' use of their official power.

46. That the defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his Constitutional and Civil rights.

47. That defendants' supervisors and policy-making officers, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the above-detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

54. That by reason of the foregoing, the plaintiff, DEVON BASHER, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN FOURTH CAUSE OF ACTION FOR VIOLATION
OF PLAINTIFF'S RIGHT AGAINST UNREASONABLE SEARCH AND
SEIZURE PURSUANT TO THE NEW YORK STATE CONSTITUTION**

55. Plaintiffs repeat and reiterate all of the above allegations as if fully set forth herein at length.

56. That the defendants and each of them, in their individual and official capacities, had a duty under the New York State Constitution Article 1 Section 12 to prevent and cease the wrongful detainment, false arrest, false imprisonment, and other wrongful acts that were committed against plaintiffs.

57. In actively inflicting and failing to prevent the above-stated abuses incurred by the plaintiffs, all of the defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of the plaintiff against illegal search and seizure, physical abuse, detained custody and arrest without other due process that the New York State Constitution guarantees to the plaintiff.

58. That the breach of duty under the New York State Constitution by the defendants was a direct and proximate cause of the aforementioned harm suffered by the plaintiffs.

59. That by reason of the foregoing, plaintiff, DEVON BASHER, was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

48. That defendants have failed to properly or effectively train their agents, servants and/or employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

49. That defendants have sanctioned the above-mentioned policy and practices through their deliberate indifference to the effects of such policies and practices upon the constitutional rights of the plaintiffs and others similarly situated.

50. That the defendants' motivations were in clear contravention of the United States Constitution and the Constitution of the State of New York.

51. As a direct and proximate result of the aforesaid acts of the defendant police officers, the plaintiff, DEVON BASHER, suffered a violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable search and seizure of his person and loss of his physical liberty.

52. The actions of the defendants violated the following clearly established and well settled federal constitutional rights of plaintiff DEVON BASHER: Freedom from the unreasonable seizure of this person, and Freedom from the use of excessive, unreasonable and unjustified force against his person.

53. That by reason of the foregoing, plaintiff DEVON BASHER was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

60. That by reason of the foregoing, the plaintiff, DEVON BASHER, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION FOR ATTORNEYS' FEES

61. Plaintiffs repeat and reiterate all of the above allegations as if fully set forth herein at length.

62. That the actions of defendants resulting from the arrest, detention, imprisonment assault, use of excessive force, and prosecution of plaintiffs, constitute an unlawful arrest imprisonment, battery, and the use of excessive force, which deprived the plaintiff of rights, privileges, and immunities, as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1983 and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the defendants' agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals.

63. That the plaintiff has incurred significant attorneys' fees in the prosecution of the above-referenced claims against the defendants.

64. That in the event that the plaintiff is successful in the prosecution of this claim, then the plaintiff shall be a prevailing party within the meaning of 42 U.S.C. § 1988 and entitled to the recovery of said attorneys fees from the defendants.

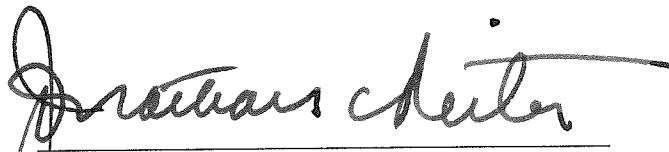
65. As a result, defendants are liable to plaintiff for a sum that will be determined at the time of trial.

WHEREFORE, plaintiffs demand damages in an amount that exceeds the jurisdictional amount of all lower courts from all defendants in each of the above causes of action along with punitive damages and attorney's fees, together with the costs and disbursements of this action.

Dated: New York, New York
November 11, 2014

JONATHAN C. REITER LAW FIRM, PLLC

By:



JONATHAN C. REITER
Attorneys for Plaintiff
350 Fifth Avenue, Suite 6400
New York, New York
(212) 736-0979

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
 ss:
COUNTY OF NEW YORK }

JONATHAN C. REITER, an attorney duly admitted to practice in the Courts of the State of New York, state that I am the attorney for the plaintiff herein.

I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true.

The reason this verification is made by me and not by plaintiff is that plaintiff resides in a county other than the one in which affirmant has his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: communications and correspondence had with plaintiff and other documents relating thereto which are in affirmant's possession.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
November 11, 2014


JONATHAN C. REITER, ESQ.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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THE CITY OF NEW YORK, P.O. ROBERT
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Defendants.

SUMMONS and VERIFIED COMPLAINT

**JONATHAN C. REITER LAW FIRM, PLLC
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350 Fifth Avenue, Suite 6400
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